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THINK OUT LOUD

Immigration agencies have access to license plate data in Washington state

By Sage Van Wing (OPB)
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Law enforcement agencies across Oregon and Washington use automated license plate readers to identify vehicles and manage traffic.

Many of those cameras are run by a company called Flock Safety, which has been criticized for sharing data with immigration officials. A new study from the University of Washington’s Center for Human Rights found that U.S. Border Patrol and Immigration and Customs Enforcement have access to Flock license plate data from at least 18 of 31 law enforcement agencies in Washington state.
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Phil Neff, the coordinator for the UW Center for Human Rights, joins us to discuss the research.

Note: The following transcript was transcribed digitally and validated for accuracy, readability and formatting by an OPB volunteer.

Dave Miller: This is Think Out Loud on OPB. I’m Dave Miller. Law enforcement agencies across Oregon and Washington use automated license plate readers to identify vehicles and to manage traffic. Many of these cameras are run by a company called Flock Safety, which has been criticized for creating a system whose data is used to target immigrants, organizers and people seeking abortions. A new study from the University of Washington’s Center for Human Rights found that federal immigration officers have been able to access Flock data in a variety of ways from more than a dozen local agencies. Phil Neff is a coordinator of the Center for Human Rights. He joins us now to talk about what his team has found. It’s good to have you on the show.

Phil Neff: Hello, thanks for having me.

Miller: Your center published a report about automated license plate reader systems three years ago, and then now this new one. How much has changed just since 2022?

Neff: We want to revisit this topic because the landscape of automated license plate readers have changed significantly, with Flock Safety becoming the main supplier of those systems to agencies, at least in Washington state. With technological advances, ALPR systems have been around for a pretty long time, but Flock’s system, for example, uses proprietary AI algorithms to analyze images it captures to include characteristics, not just like the license plate itself, but the type of the car and its description, things like that. So we wanted to revisit the topic to see what has changed in a few years.

Miller: How widespread is the use of Flock in particular in Washington right now?

Neff: I think that’s an important point is that only Flock actually knows exactly how many public agencies in Washington state contract for its services, let alone private users as well. It’s been reported that around 75 or 80 public agencies in Washington state use Flock.

Miller: This could be local police or sheriff’s departments, school districts, public housing authorities, and then there are private places, private businesses or neighborhood associations and on and on. Your report outlines three different ways that federal immigration enforcement On Point

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or Border Patrol agents have been able to get access to Washington data from the Flock system. This gets a little bit technical, but the details are pretty important here so we can understand what’s happening. I want to start with what you call 1 to 1 or front door access. What does that mean?

Neff: The Flock system works a little bit like a social network where individual agencies that use the system can decide what other agencies they want to share access to their systems with, in a direct one-to-one way. So Washington State Sheriff or police agency could decide, we want to share our data with a specific other agency in the state or another part of the country, and then that agency can query data picked up by local devices.

Miller: How many Washington law enforcement agencies have just simply given access for their data to federal immigration officials?

Neff: The records that we collected over the course of a few months earlier this year showed that at least eight Washington State law enforcement agencies had enabled direct sharing of their networks with the U.S. Border Patrol at some point during 2025.

Miller: So that is just enabling direct access, but you also talk about backdoor access and said that at least 10 local law enforcement agencies had provided that or that that had been the way, this backdoor way, that immigration officials had accessed that data. What does that mean?

Neff: The access that we described as backdoor in the report, we have continued to gather information about that, and it appears that that was a result of a feature that Flock calls its nationwide lookup feature, which is a single checkbox in the settings of a Flock system which can allow any other agency that has turned on that nationwide lookup to access data captured by local cameras. What happened over the summer of 2025 is that Flock had an undisclosed what they call pilot program with U.S. Border Patrol and Homeland Security investigations, which gave them access to the pool of users that had opted into nationwide lookup, but, importantly, without informing those users that those federal agencies had been added to that functionality.

The only way that those agencies would have been aware that that had happened is if

they had been closely monitoring the network audit reports that Flock provides to its On Point

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users. In a number of cases, agencies in Washington state, when we pointed this out, said they had no idea this was happening, and took steps to restrict that access.

Miller: Then there’s one more way that immigration officials at the federal level could get access to this data, you called a side door access. Can you describe a scenario where that might be the case?

Neff: That is what we call it when you see evidence in the Flock search logs of agencies making requests on behalf of a federal immigration enforcement agency. So you might, for example, see an out of state law enforcement agency query a specific network or the nationwide network with a reason keyword that says something like ICE or immigration investigation or something like that, that’s not the purview of a local law enforcement agency. That’s what we call side door access when it’s a search by an authorized user on behalf of another agency.

Miller: So let’s say that there is some neighboring sheriff’s department in Idaho, say, and ICE goes to them and says, hey, you have access to Flock data for some neighboring eastern Washington County. Can you look at Flock data for us, and then send what you find to us? That’s how it might work?

Neff: That’s entirely possible, yes.

Miller: But what if the sheriff’s deputy in Idaho were a little bit careful and didn’t write words like ICE or immigration in the query field? Would you, as somebody who looked at an audit report, or would the sheriff’s department in Washington even know why this was being done?

Neff: That’s exactly right. That’s exactly what could happen and in fact a lot of the searches that we saw, even directly by U.S. Border Patrol, the reason keyword given is simply investigation or some very broad vague category like that. There’d be no way to independently verify and that was one of our major challenges in writing this report, was attempting to pick out these possible cases of concern out of literally hundreds of thousands of queries from agencies across the country.

And we’ve since received some information from some Washington state agencies explaining, for example, “BP” in our search, that didn’t stand for Border Patrol, that was Bellevue Police, and OK, that’s a satisfactory explanation of that, but there needs to be more information and documentation available for transparency and accountability purposes.

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Miller: Were you able to learn at all what federal immigration officials did with the Washington data that they in a variety of ways got access to?

Neff: That’s a very difficult task, and we’re currently working on things related to that. I don’t know that we’ll ever be able to clarify specific cases of coming out of the Flock data, but we know from court records and ICE records that ICE is very interested in license plates and that they use license plates as a means to identify people in the immigration apprehensions that they’re carrying out across the region.

As I’m sure you’ve heard and has been reported in extremely disturbing characteristics of the arrests we’re seeing across the region of unmarked cars, armed men who don’t identify what agency they’re involved with, use of force, so it’s a really serious issue and it’s again, as I said, it’s clear that ICE is very interested in license plate information as a means to carry out its arrests.

Miller: Washington, like Oregon, has a sanctuary law. In Washington, it’s called the Keep Washington Working Law. The details are a little bit different, but the basics are the same, that is that state and local officials are not supposed to cooperate with federal immigration enforcement. Does providing access constitute partnering with federal law enforcement?

Neff: I think certainly in the spirit of that legislation, it’s very concerning, but at least in the case of Washington state as written, the Keep Washington Working Act does not directly prohibit the kind of information sharing that we documented via Flock. I think it would prohibit the side door searches on behalf of a federal immigration enforcement agency, but importantly that would be limited to civil immigration enforcement.

Miller: Phil, thanks very much.

Neff: Thank you.

Miller: Phil Neff is the research coordinator for the University of Washington’s Center for Human Rights. He joined us to talk about their new report, finding that federal immigration agents have gotten a lot of access to license plate camera data in Washington State.

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